

Radhey Shyam @ Radhey Shyam Patel v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 July 2022 · Writ-C No. 10791 of 2022 · Writ-C No. 10791 of 2022 ·
Writ disposed; liberty to object under Para 6.8; coercive action stayed eight weeks.

HEADNOTE

Without examining the merits of a challenge to a Collector's electricity recovery, the Court disposed of the writ on the licensee's statement by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive action for eight weeks or until the objection was decided, whichever was earlier.

FACTUAL SUMMARY

The petitioner, Radhey Shyam, approached the Allahabad High Court seeking certiorari to quash a recovery order dated 24 February 2021 issued by the Additional Collector (Finance and Revenue), Bhadohi, for Rs. 78,880 towards electricity dues and notice expenditure, and a mandamus for reassessment of that amount. Counsel for the power distribution corporation stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

6.8-objection-to-recovery-with-stay

HOLDING

Without expressing any opinion on merits, the writ against a Collector's electricity recovery was disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, before respondent No. 3 within four weeks; if so submitted, the objection was to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action was to be taken on the impugned demand for eight weeks or till disposal of the objection, whichever was earlier. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Writ against electricity recovery disposed by directing a Para 6.8 objection to be decided after hearing, with a time-bound stay of coercive action. ¶ 1

assessment-6.8-alternate-remedy The Court declined to examine the recovery on merits and relegated the consumer to the Para 6.8 objection process. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 24 FEBRUARY 2021 RECOVERY AND THE PRAYER FOR REASSESSMENT

Writ disposed of without expressing any opinion on merits; petitioner relegated to a Para 6.8 objection. ¶ 1